ORDINANCE NO 440

AN ORDINANCE REGULATING TRAFFIC AND THE OPERATION OF VEHICLES ON THE STREETS, ALLEYS, HIGHWAYS, PARKING LOTS, AND OTHER AREAS WITHIN THE CITY OF RECTOR, ARKANSAS; PROVIDING PENALTIES FOR THE VIOLATION THEREOF; DECLARING AN EMERGENCY, AND FOR OTHER PURPOSES.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

SECTION 1. That any person who drives any vehicle on the streets, alleys, highways, parking lots, and other areas within the limits of the City of Rector, Arkansas, in such a manner as to indicate either a negligent or careless disregard for the safety of persons or property shall be deemed to be guilty of hazardous driving, and the same is hereby declared to be a misdemeanor.

SECTION 2. Every person convicted of such hazardous driving shall be punished upon a first conviction by a fine of not less than $85.00 nor more than $200.00, or by imprisonment for a period of not less than one (1) day nor more than fifteen (15) days or by both such fine and imprisonment; upon a second or subsequent conviction within a year from the date of the first conviction of such offense, such person shall be punished by a fine of not less than $100.00 nor more than $500.00 or by imprisonment of not less than five (5) days nor more than six (6) months, or by both such fine and imprisonment.

SECTION 3. For the purpose of this ordinance the term vehicle shall include every device in, upon or by which any person or property is or may be transported or drawn upon a public highway except vehicles moved by human power or vehicles used on rails or tracks.

SECTION 4. All ordinance or parts of ordinance in conflict herewith are hereby repealed.

SECTION 5. This ordinance is necesssary for the preservation of life, limb, and property and an emergency is therefore declared to exist, and this ordinance shall be in full force and effect from after its passsage and publication.

Approved: RONALD E. KEMP

Ronald E. Kemp

PASSED: 1-6-97

ATTEST

RECORDER/TREASURER

Kenneth R. Burns